



CHAPTER ccxlii.

An Act to incorporate the Mid-Yorkshire Tramways Company and to empower that Company to make and maintain tramways and other works and for other purposes. A.D. 1903.
[14th August 1903.]

WHEREAS the making and maintaining of the tramways and other works hereinafter described and authorised by this Act and the working of such tramways by mechanical power would be of public and local advantage :

And whereas the persons in that behalf in this Act named with others are willing at their own expense to construct the tramways if authorised by Parliament so to do and are desirous of being incorporated into a company (hereinafter called "the Company") with adequate powers for the purpose and it is expedient that they be incorporated and empowered accordingly as by this Act provided :

And whereas by the Shipley Improvement Act 1901 the urban district council of Shipley (hereinafter called "the Shipley Council") were empowered to construct certain tramways within the urban district of Shipley and were authorised to enter into and carry into effect agreements with the owner and lessee of any tramways in any adjacent district which can be worked with any of the tramways of the Shipley Council and with the local authority of such district with respect (inter alia) to the construction leasing or working by the contracting parties of all or any of their respective tramways and works or any part or parts thereof and for other purposes :

And whereas by the Bingley Urban District Council Act 1901 the urban district council of Bingley (hereinafter called "the Bingley Council") were authorised to make and maintain within their district a new road in that Act described as "Street Work No. 3":

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And whereas it is expedient that the Company and the Bingley Council should be authorised to enter into and carry into effect agreements relative to contributions being made by the Company to the said council towards the construction of the said Street Work No. 3 :

And whereas it is expedient that the Company and certain local authorities should be empowered to enter into and carry into effect agreements as hereinafter provided and that the other powers mentioned in this Act be conferred upon the Company and that the provisions of the Tramways Act 1870 as to the purchase of the undertaking of the Company should be modified as hereinafter mentioned :

And whereas plans and sections showing the lines and levels of the tramways and other works by this Act authorised and showing the lands required or which may be taken for the purposes or under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the clerk of the peace for the west riding of the county of York and are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the Mid-Yorkshire Tramways Act 1903.

Incorporation of general Acts.

2. The following Acts and parts of Acts (that is to say) :—
The Companies Clauses Acts 1845 1888 and 1889 and Part I. (relating to cancellation and surrender of shares) of the Companies Clauses Act 1863 ;
The Lands Clauses Acts ; and
Section 3 (Interpretation of terms) and Part II. (Construction of tramways) and Part III. (General provisions) of the Tramways Act 1870 ;

so far as they are applicable to and are not varied by or inconsistent with the provisions of this Act are incorporated with and form part of this Act and shall apply to the undertaking of the Company.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated

herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction : A.D. 1903.

“The Company” means the Company incorporated by this Act ;

“The Keighley Corporation” means the mayor aldermen and burgesses of the borough of Keighley ;

“The Shipley Council” means the urban district council of Shipley ;

“The Bingley Council” means the urban district council of Bingley ;

The expression “local authority” in this Act and in the Tramways Act 1870 shall for the purposes of the said Acts mean with reference to a rural district the council of such rural district ;

“The tramways” “the street works” and “the undertaking” mean respectively the tramways the street works and the undertaking and any part thereof by this Act authorised ;

“Mechanical power” includes electrical and every other motive power not being animal power ;

“Engine” includes motor ;

The word “contingencies” in section 122 of the Companies Clauses Consolidation Act 1845 shall with reference to the Company be construed to include the contingency of the undertaking being sold to the local authority at a sum less than the aggregate amount of the capital and debts of the Company.

4. Alfred Simeon Joseph Musgrave John Beaver White Robert Cornelius Quin and all other persons who have already subscribed to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purpose of making and maintaining tramways and for supplying electricity and for other the purposes of this Act and for those purposes shall be and are hereby incorporated by the name of “The Mid-Yorkshire Tramways Company” and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act. Incorporation of Company.

TRAMWAYS AND STREET WORKS.

5. Subject to the provisions of this Act the Company may make form lay down work use and maintain the tramways hereinafter described in the lines and within the limits of deviation and Power to make tramways.

A.D. 1903. — according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates posts bridges embankments viaducts sewers drains tubes cables wires apparatus generating stations depôts engine houses carriage houses sheds waiting rooms works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for those purposes Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways hereinbefore referred to and authorised by this Act will be situated wholly in the west riding of the county of York and are—

Tramway No. 1 (1 mile 3 furlongs and 5·3 chains or thereabouts in length of which 4 furlongs and 3·3 chains or thereabouts is double line and 7 furlongs and 2 chains or thereabouts is single line) commencing in the borough and parish of Keighley in Cavendish Street at a point in line with the east side of North Street and terminating in the Bradford and Keighley Road at a point 35 yards or thereabouts on the west side of Banks Lane in the parish of East and West Morton in the rural district of Keighley :

Tramway No. 2 (1 mile 2 furlongs and 8·7 chains or thereabouts in length of which 2 furlongs and 3·9 chains or thereabouts is double line and 1 mile and 4·8 chains or thereabouts is single line) wholly in the parish of East and West Morton in the rural district of Keighley commencing by a junction with Tramway No. 1 at its termination and terminating in the Bradford and Keighley Road at the northern boundary of the urban district and parish of Bingley :

Tramway No. 3 (3 miles 1 furlong and 9·2 chains or thereabouts in length of which 1 mile 3 furlongs and 2·6 chains or thereabouts is double line and 1 mile 6 furlongs and 6·6 chains or thereabouts is single line) wholly in the urban district and parish of Bingley commencing by a junction with Tramway No. 2 at its termination and terminating in the Bradford and Keighley Road at the southern boundary of the urban district and parish of Bingley by a junction with the Tramway No. 2 authorised by the Shipley Improvement Act 1901 at its termination Provided that so much of

Tramway No. 3 as is situate on the new road authorised to be constructed by and described as Street Work No. 3 in the Bingley Urban District Council Act 1901 shall not be made until the construction of the said new road is approaching completion :

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Tramway No. 4 (6 furlongs and 6 chains or thereabouts in length of which 1 furlong and 9·8 chains or thereabouts is double line and 4 furlongs and 6·2 chains or thereabouts is single line) wholly in the urban district and parish of Baildon commencing by a junction with Tramway No. 5 at a point in Otley Road 65 yards or thereabouts south-west from the north-east corner of Baildon Road at its junction with Otley Road and terminating in Baildon Road at a point 70 yards or thereabouts south-east from the junction of Baildon Road with Browgate :

Tramway No. 5 (1 mile 6 furlongs and 8·7 chains or thereabouts in length of which 3 furlongs and 7 chains or thereabouts is double line and 1 mile 3 furlongs and 1·7 chains or thereabouts is single line) wholly in the urban district and parish of Baildon commencing on Baildon Bridge in the main road to Otley by a junction with the Tramway No. 7 authorised by the Shipley Improvement Act 1901 and terminating in the main road to Otley at the southern boundary of the parish of Esholt in the rural district of Wharfedale :

Tramway No. 6 (1 mile 1 furlong and 3·2 chains or thereabouts in length of which 1 furlong and 9·3 chains or thereabouts is double line and 7 furlongs and 3·9 chains or thereabouts is single line) wholly in the parish of Esholt in the rural district of Wharfedale commencing by a junction with Tramway No. 5 at its termination and terminating in the main road to Otley at the northern boundary of the parish of Esholt in the rural district of Wharfedale :

Tramway No. 7 (6 furlongs and 7 chains or thereabouts in length of which 1 furlong and 6·3 chains or thereabouts is double line and 5 furlongs and 0·7 chain or thereabouts is single line) wholly in the parish of Hawksworth in the rural district of Wharfedale commencing by a junction with Tramway No. 6 at its termination and terminating in the main road to Otley at the northern boundary of the parish of Hawksworth in the rural district of Wharfedale :

Tramway No. 8 (1 mile 6 furlongs and 4·8 chains or thereabouts in length of which 5 furlongs and 7·1 chains or

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thereabouts is double line and 1 mile and 7·7 chains or thereabouts is single line) wholly in the parish of Menstone in the rural district of Wharfedale commencing by a junction with Tramway No. 7 at its termination and terminating in Menstone Lane at the southern boundary of the urban district and parish of Burley-in-Wharfedale:

Tramway No. 9 (7 furlongs and 2·7 chains or thereabouts in length of which 2 furlongs and 5·9 chains or thereabouts is double line and 4 furlongs and 6·8 chains or thereabouts is single line) wholly in the urban district and parish of Burley-in-Wharfedale commencing by a junction with Tramway No. 8 at its termination and terminating at a point in the main Skipton and Otley road 40 yards or thereabouts north-west from the east corner of the Skipton and Leeds road at its junction with the Skipton and Otley road:

Tramway No. 10 (2 miles 1 furlong and 0·4 chain or thereabouts in length of which 5 furlongs and 6·6 chains or thereabouts is double line and 1 mile 3 furlongs and 3·8 chains or thereabouts is single line) wholly in the urban district and parish of Ilkley commencing at a point in Brook Street 10 yards or thereabouts north from the north corner of Railway Road and terminating in the main Skipton and Otley road at the boundary of the parish or extra parochial place of Denton in the rural district of Wharfedale:

Tramway No. 11 (9·1 chains or thereabouts in length of which 3·8 chains or thereabouts is double line and 5·3 chains or thereabouts is single line) wholly in the parish or extra parochial place of Denton in the rural district of Wharfedale commencing by a junction with Tramway No. 10 at its termination and terminating in the main Skipton and Otley road at the south-eastern boundary of the parish or extra parochial place of Denton in the rural district of Wharfedale:

Tramway No. 12 (1 mile 6 furlongs and 2·8 chains or thereabouts in length of which 6 furlongs and 3·2 chains or thereabouts is double line and 7 furlongs and 9·6 chains or thereabouts is single line) wholly in the urban district and parish of Burley-in-Wharfedale commencing by a junction with Tramway No. 11 at its termination and terminating in the main Skipton and Otley road by a junction with tramway No. 9 at its termination:

Tramway No. 13 (4 furlongs and 8 chains or thereabouts in length of which 1 furlong and 9·7 chains or thereabouts is double line and 2 furlongs and 8·3 chains or thereabouts is single line) wholly in the urban district and parish of Burley-in-Wharfedale commencing by a junction with Tramways Nos. 9 and 12 at their terminations and terminating in the main Skipton and Otley road at the eastern boundary of the urban district and parish of Burley-in-Wharfedale: A.D. 1903.

Tramway No. 14 (1 mile 5 furlongs and 1·75 chains or thereabouts in length of which 3 furlongs and 8·9 chains or thereabouts is double line and 1 mile 1 furlong and 2·85 chains or thereabouts is single line) wholly in the urban district and parish of Otley commencing by a junction with Tramway No. 13 at its termination and terminating at Kirkgate at a point 25 yards or thereabouts north of the north corner of Mercury Row :

Tramway No. 15 (a double line 2·65 chains or thereabouts in length) wholly in the urban district and parish of Burley-in-Wharfedale commencing by a junction with Tramway No. 9 at a point in the Skipton and Leeds road 50 yards or thereabouts measured along that road in a southerly direction from the south-east corner of the Skipton and Leeds road at its junction with the main Skipton and Otley road and terminating at a point in the main Skipton and Otley road 25 yards or thereabouts east of the east corner of the Skipton and Leeds road.

6. Subject to the provisions of this Act the Company may make the street works hereinafter described in the lines and within the limits of deviation and according to the levels shown on the deposited plans and sections together with all necessary and proper works improvements junctions connections approaches and conveniences connected therewith or incidental thereto and may enter upon take hold and use such of the lands and buildings delineated on the deposited plans and described in the deposited book of reference and may for the like purpose enter upon open break up and interfere with such streets or roads as may be required for that purpose. Power to make street works.

The street works hereinbefore referred to and authorised by this Act will be situate wholly in the west riding of the county of York and are—

In the borough of Keighley and rural district of Keighley.

Work A (1) A new bridge with approaches thereto in substitution for the existing bridge known as Stockbridge by

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which the road between Keighley and Bradford is carried over the River Aire commencing in the borough and parish of Keighley at a point 102 yards or thereabouts measured along the centre line of the said road in a south-westerly direction from a point in line with the Ordnance bench mark on the south-east pier of the said existing bridge and terminating in the parish of East and West Morton in the rural district of Keighley at a point 95 yards or thereabouts measured in manner aforesaid in a north-easterly direction from that bench mark :

(2) The diversion of the said existing road from Keighley to Bradford between the said points of commencement and termination of Work A (1) and the removal of the said existing bridge known as Stockbridge.

In the urban district of Bingley.

Work B A widening of the existing road and bridge crossing the River Aire and known as Cottingley Bridge between points respectively 72 yards or thereabouts and 158 yards or thereabouts measured in a northerly direction along the centre line of the Bradford and Keighley road from the milestone (shown on the deposited plans) indicating the distance of one mile from Bingley.

In the urban district of Baildon.

Work C A widening or rounding off on the west side of Baildon road at Delph Head between points respectively 302 yards or thereabouts and 440 yards or thereabouts south from the south-west corner of Low Baildon road.

In the rural district of Wharfedale.

Work D A widening and diversion of the main Bradford and Otley road commencing at a point 20 yards or thereabouts south-west from the milestone indicating the distance of four miles from Otley and terminating at a point 200 yards or thereabouts measured along the centre line of the existing road in a north-easterly direction from that milestone.

In the rural district of Wharfedale and urban district of
Burley-in-Wharfedale.

Work E (1) A widening on both sides and a diversion of Church Lane and its continuation Menstone Lane from the junction in the parish of Menstone in the rural district of Wharfedale of Church Lane with main road to a point in the parish and urban district of Burley-in-Wharfedale

measured along the centre line of Church Lane and Menstone Lane for a distance of 1,382 yards or thereabouts from the said junction of Church lane and main road : A.D. 1903.

(2) The diversion and reconstruction of the bridge carrying Menstone Lane over the Ilkley extension of the Midland Railway between points respectively 70 yards or thereabouts south and 70 yards or thereabouts north from the middle of the centre arch of the existing bridge measured along the centre line of the road.

In the urban district of Burley-in-Wharfedale.

Work F A widening on both sides and diversion of Menstone Lane commencing at a point in line with the base of the south abutments of the bridge carrying the Midland and North-Eastern Joint Railway over Menstone Lane and terminating at the junction of Menstone Lane with the Skipton and Leeds road :

Work G A widening and rounding off of the north-east corner of the Skipton and Leeds road at its junction with the main Skipton and Otley road commencing at a point in the Skipton and Leeds road 22 yards or thereabouts south from the said north-east corner and terminating at a point in the main Skipton and Otley road 135 yards or thereabouts measured in an easterly direction from that corner :

Work H A widening of the main Skipton and Otley road on its northern side commencing 30 yards or thereabouts west from a point in line with the north-east side of Eastfield Lane and terminating 80 yards or thereabouts east of that point :

Work I A widening on the south side of the main Skipton and Otley road between points respectively 65 yards or thereabouts and 200 yards or thereabouts east of the north-east corner of Eastfield Lane :

Work J A widening and diversion of the main Skipton and Otley road on its north side between points respectively 104 yards or thereabouts and 695 yards or thereabouts east of the north-east corner of Eastfield Lane.

In the urban districts of Burley-in-Wharfedale and Otley.

Work K A widening on the south side of the main Skipton and Otley road between points respectively 40 yards or thereabouts west and 40 yards or thereabouts east of the west gatepost of the entrance to Holme Lodge commencing in the parish and urban district of Burley-in-Wharfedale and terminating in the parish and urban district of Otley.

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In the urban district of Otley.

Work L A widening on the south side of the main Skipton and Otley road commencing at a point 105 yards or thereabouts east of the Ordnance bench mark at the lodge entrance to Maple Bank and terminating at a point 340 yards or thereabouts south-east from a point in line with the Ordnance bench mark on Mickle Ing Bridge including the widening of that bridge.

In the urban district of Burley-in-Wharfedale.

Work M A widening of main street on the south-west side commencing at a point 55 yards or thereabouts north-west from the north-east corner of Victoria Road and terminating at a point 80 yards or thereabouts south-east from that corner :

Work N A widening on the south-west side of the main Skipton and Otley road commencing and terminating at points respectively 5 yards or thereabouts and 105 yards or thereabouts north-west from a point in line with the south-west corner of Leather Bank :

Work O A widening of the main Skipton and Otley road on the south-west side commencing at a point 35 yards or thereabouts west of a point in line with the western corner of the carriage entrance to Walton House and terminating at a point 60 yards or thereabouts east from that corner :

Work P A widening of the main Skipton and Otley road on the south side commencing at a point 45 yards or thereabouts east of a point in line with the milestone indicating the distance of twelve miles from Skipton and terminating at a point 55 yards or thereabouts west of that milestone :

Work Q A widening of the main Skipton and Otley road on the north side commencing at a point in line with the milestone indicating the distance of twelve miles from Skipton and terminating at a point 170 yards or thereabouts west of that milestone.

In the urban district of Ilkley.

Work R A widening of the main Skipton and Otley road on the north side between points respectively 60 yards or thereabouts west and 73 yards or thereabouts east from a point in line with the west side of the entrance to Sunset Terrace.

7. The Company may erect and maintain in the urban district of Burley-in-Wharfedale at the junction of the main Skipton and

Power to
Company to
erect waiting
room.

Otley road with the Skipton and Leeds road on the site shown on the deposited plans a waiting room or waiting rooms for the convenience of persons using the tramways. A.D. 1903.

LANDS.

8. Subject to the provisions of this Act the Company may enter upon take hold and use the lands hereinafter described and may on such lands construct a station or stations for generating electrical energy and erect thereon buildings and use dynamos engines and other apparatus and things necessary or proper for the generation of electrical energy and for the working of the tramways thereby The lands hereinbefore referred to are as follows:—

Lands for
generating
station.

The fields or enclosures in the parish of Menstone in the rural district of Wharfedale numbered respectively on the 1-2500 Ordnance map of Yorkshire (west riding) sheet clxxxvii 9 (first edition 1889-91) 282 (having an area of 2·936 acres) and 288 (having an area of 1·341 acres).

9. And whereas in the construction of the tramways and the street works or otherwise in exercise of the powers of this Act it may happen that portions only of the houses or other buildings or manufactories shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 92 of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the houses or other buildings or manufactories described in the Schedule to this Act and whereof parts only are required for the purposes of this Act may if such portions can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Company the portions only of the premises so required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise.

Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

10. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners

Correction of
errors &c. in
deposited
plans and
book of refer-
ence.

A.D. 1903. lessees and occupiers of the lands in question may apply to two justices acting for the west riding of the county of York for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said west riding and a duplicate thereof shall also be deposited with the town clerk of the borough or with the clerks of the urban district council or parish council of the urban district or parish as the case may be in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk and clerks of the councils respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

Period for compulsory purchase of lands.

11. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Restriction on taking houses of labouring class.

12. The Company shall not under the powers of this Act purchase or acquire in any borough or other urban district and elsewhere than in any borough or urban district any parish ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or

handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them. A.D. 1903.

13. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

14. In addition to the other lands which the Company are by this Act authorised to acquire they may purchase take on lease or acquire by agreement for the purpose of their undertaking and may hold any lands not exceeding ten acres and they may on such lands and on any other lands purchased or acquired under the authority of this Act erect or construct and hold depôts yards offices buildings stations sidings works and other conveniences in connection with their undertaking but nothing in this Act shall exonerate the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any land purchased or acquired by agreement under the powers of this section or authorise the Company to construct any station for generating electrical energy elsewhere than on the lands described in the section of this Act whereof the marginal note is "Lands for generating station." Purchase of lands by agreement.

CONSTRUCTION AND MAINTENANCE.

15. No tramway shall be opened for public traffic until it has been inspected and certified to be fit for such traffic by the Board of Trade. Inspection by Board of Trade.

16. The Company shall not without the consent in writing of the road authority make any of the tramways in any part of any street or road by this Act authorised to be widened or diverted until such street or road has been so widened or diverted. Tramways not to be made until streets widened or diverted.

17. If the tramways are not completed as follows (that is to say) :— Period for completion of tramways.

(A) As to the tramways to be laid down in any street road or bridge by this Act authorised to be widened or diverted

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- within one year after the completion to the satisfaction of two justices of such widening or diversion. Provided that the Company shall before applying to such justices for their certificate that such widening or diversion has been completed to their satisfaction give seven days' notice in writing of their intention to apply for the same to the road authority of the district in which such street road or bridge is situate;
- (B) As to so much of Tramway No. 1 as is mentioned in subsection (1) of the section of this Act whereof the marginal note is "As to tramways in borough of Keighley" within one year from the date on which the Company shall under the provisions of that subsection be entitled to commence the construction of such portion of Tramway No. 1;
- (c) As to the remainder of the tramways within five years from the passing of this Act;

then on the expiration of those respective periods the powers by this Act granted for making or completing the same or otherwise in relation thereto respectively shall cease except as to so much thereof as shall then be completed.

Gauge of tramways.

18. The tramways shall be constructed on a gauge of four feet or on such other gauge as the Board of Trade may approve. Provided always that so much of section 34 of the Tramways Act 1870 as limits the extent of the carriage used on any tramway beyond the edge of the wheels of such carriage shall not apply to carriages used on the tramways but no carriage or engine used thereon shall exceed six feet six inches in width or such other width as may from time to time be prescribed by the Board of Trade.

Period for completion of street works.

19. If the street works are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company in relation thereto shall cease except as to so much thereof as is then completed.

Power to deviate in constructing street works.

20. The Company in making the street works may deviate vertically from the levels thereof shown on the deposited sections to any extent not exceeding in the case of Work L three feet and in the case of the other street works two feet but not so as to increase without the consent of the road authority the rate of inclination of the roads or streets as shown on the deposited plans.

Power to make subsidiary works.

21. Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Company in connection with the street works and for the purposes thereof may with the consent of the local authority make junctions and communications with any existing streets which may be interfered with by or be

contiguous to such works and may with the like consent make diversions widenings or alterations of lines or levels of any existing streets for the purpose of connecting the same with such works or otherwise and may with the like consent alter divert and stop up all or any part of any drain sewer or channel within the said limits the Company providing a proper substitute before interrupting the flow of sewage in any drain or sewer and making compensation for any damage done by them in the execution of any such works under the powers of this section.

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22. The street works so far as the same affect any public street or road when the same shall respectively have been completed to the satisfaction of the road authority shall together with the sites of all houses and all lands laid into and appropriated for such works and the subsoil thereof and the subsidiary works connected therewith vest in such road authority and such sites shall for all purposes form part of the streets to which they are respectively added.

Vesting of street works in road authority.

23. All public rights of way over or along the portions of any street road footpath or bridge which shall under the provisions of this Act be diverted and over any of the lands numbered 1 4 5A and 6 in the borough and parish of Keighley and 1A 2 3 and 5 in the parish of East and West Morton in the rural district of Keighley on the deposited plans which shall under the compulsory powers of this Act be purchased or acquired shall be and the same are hereby extinguished.

Extinguishment of rights of way.

24. No street road footpath or bridge or portion of street road footpath or bridge which is by this Act authorised to be diverted shall be so diverted unless and until the new street road footpath or bridge (if any) which is by this Act authorised to be substituted therefor is completed to the satisfaction of two justices and opened to the public. Provided that the Company shall before applying to such justices for their certificate that such street road footpath or bridge is completed to their satisfaction give seven days' notice in writing of their intention to apply for the same to the authority having jurisdiction over such street road footpath or bridge.

Roads not to be diverted till substituted work completed.

25. If and whenever after the passing of this Act the road authority alters the level of any road along or across which any part of the tramways is laid or authorised to be laid the Company may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Tramways to be kept on level of surface of road.

26.—(1) In addition to the requirements of section 26 of the Tramways Act 1870 the Company shall at the same time as they

Plan of proposed mode of construc-

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tion of tram-
ways.

give notice to the road authority of their intention to open or break up any road for the purpose of constructing laying down maintaining and renewing any of the tramways lay before the Board of Trade and the road authority a plan showing the proposed mode of constructing laying down maintaining and renewing such tramways and a statement of the materials intended to be used therein and the Company shall not commence the construction laying down maintenance and renewal of any of the tramways or part of any of the tramways respectively until such plan and statement have been approved by the Board of Trade and the road authority and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by section 26 of the said Act Provided that the word "materials" in this section does not include materials used for paving any street or road under the provisions of the Tramways Act 1870 or this Act.

(2) The Company shall so construct maintain and use the tramways over any bridge or culvert in any road as not injuriously to affect such bridge or culvert and in the event of any injury or damage being caused to any such bridge or culvert by the construction maintenance or user of the tramways the Company shall at their own expense make good and restore the same to the reasonable satisfaction of the authority owning or having jurisdiction over such bridge or culvert.

(3) Before the Company shall execute any works (other than the several works by section 6 of this Act authorised) affecting or interfering with the structure of any such bridge or culvert they shall lay before the Board of Trade and the road authority a plan showing the nature of the works so proposed to be executed and the proposed mode of executing the same and a statement of the materials intended to be used therein and the Company shall not commence the execution of the works to which this subsection applies until such plan and statement shall have been approved by the Board of Trade and the road authority and after such approval shall execute the same in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor of the road authority in like manner as provided by section 26 of the Tramways Act 1870 in regard to the works therein mentioned.

(4) If any dispute shall arise between the Company and the road authority or the said surveyor such dispute shall be referred to arbitration under the Tramways Act 1870.

27. The materials with which and the manner in which the Company shall maintain and keep in good condition and repair the portion of the road referred to in section 28 of the Tramways Act 1870 shall be such as may be agreed between the road authority and the Company or in case of difference between them as may be determined by the Board of Trade on the application of either party.

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Repair of
part of road
where tram-
way is laid.

28. The rails of the tramways shall be such as the Board of Trade may approve.

Rails of
tramways.

29.—(1) The Company shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Company at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 as varied by this Act they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues.

Penalty for
not main-
taining rails
and roads.

(2) In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramways or any portion thereof are or is situate or by twenty inhabitant ratepayers of such district that the Company have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 as varied by this Act the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Company to such penalty or penalties in respect thereof as is or are by this section imposed.

30. Every sanitary authority shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or concurrence of the Company and the provisions contained in sections 32 and 33 of the Tramways Act 1870 shall be applicable in the case of any sewer or private drain of or under the control of the said authority as if the same were a pipe for the supply of gas or water.

Sanitary
authority to
have access
to sewers.

31. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Company shall if and where required by the

Cross-overs
to be con-
structed in
certain cases.

A.D. 1903. Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by the means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Power to make additional cross-overs and to double tramway lines.

32.—(1) The Company may subject to the provisions of this Act with the consent of the Board of Trade make maintain alter and remove such cross-overs passing places sidings turnouts junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the tramways or for providing access to any generating stations warehouses stables or carriage houses or works of the Company or for forming junctions with other tramways or to any premises near any part of the tramways.

(2) Notwithstanding anything shown on the deposited plans the Company may with the consent of the Board of Trade lay down double lines in lieu of single lines or single lines in lieu of double lines or interlacing lines in lieu of double or single lines on any of the tramways and if at any time the road in which any tramway or part thereof is authorised to be laid or is laid has been or shall be altered or widened the Company may with the like consent construct such tramway or part thereof or (as the case may be) take up or reconstruct the same in such position as they may think fit.

(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Company shall not less than one month before commencing the works give notice in writing to every owner and occupier of premises abutting on the place where such less space would intervene and such rail shall not (except with the consent of the Board of Trade) be so laid if the owners or occupiers of one-third of such premises by writing under their hands addressed and delivered to the Company within three weeks after receiving the notice from the Company express their objection thereto.

Temporary tramways may be made where necessary.

33. Where by reason of the execution of any work affecting the surface or soil of any road along which any of the tramways is laid it is in the opinion of the Company necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Company may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued.

34. The Company may with the consent of the local and road authority increase the roadway of any street or road in which any of the tramways are authorised to be laid to such extent as may be necessary to leave a space of nine feet and six inches between the outside of the footpath on each and either side of such street or road and the nearest rail of such tramway by reducing the width of the footpath on each or either side of such street or road.

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Company may reduce footpath for constructing tramways.

35. Any paving metalling or material excavated by the Company in the construction of the tramways or street works from any road or bridge under the jurisdiction or control of any road authority may be applied by the Company so far as may be necessary in or towards the reinstatement or making up of the road street work or bridge and the maintenance for six months after completion of any of the tramways within the district of such road authority of so much of the roadway on either side of such tramways as the Company are by section 28 of the Tramways Act 1870 or by this Act required to maintain and the Company shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of the road authority or to such person or persons as he may appoint to receive the same. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Company and may be dealt with removed and disposed of by them in such manner as they may think fit. Any difference between the Company and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by a referee to be nominated by the Board of Trade on the application of either party.

Application of road materials excavated in construction of works.

36. The Company may erect and maintain in any district sheds or shelters or waiting rooms for the accommodation of passengers and of the Company's servants and the Company may with the consent of the local and road authority of such district for such period and on such terms as may be agreed upon use for that purpose portions of the public streets or roads within such district.

Shelters or waiting rooms.

37. Subject to the provisions of this Act the Company may during the execution of the tramways and street works with the consent of the road authority expressed in writing by the clerk of such authority stop up temporarily the carriageway or footway of

Stopping of roads during execution of works.

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Company may lop trees overhanging public highway.

38. The Company may cut and lop any trees planted in or near any highway along which the tramways are laid which may in any way interfere with the construction or working of the tramways or trolley wires in connection therewith or with the clear and safe passage of the tramcars and the passengers thereon Provided that the Company shall not in the exercise of the powers of this section do unnecessary damage to any such trees and shall make compensation to any persons who may sustain damage by the exercise of the powers conferred by this section.

Power to lay and maintain pipes and make openings in streets.

39. The Company may lay and maintain pipes and make openings or ways in or under the surface of any road or street (including the footways thereof) footpath or public place in order to lay and may lay use and maintain cables ropes conduits electric conductors wires and other apparatus for transmitting motive power for the carriages running on the tramways and the Company may use electric wires and all machinery and apparatus necessary for such motive power.

Power to place posts wires &c.

40. Subject to the provisions of this Act the Company may place and maintain on in under or over any road or street (including the footways thereof) footpath or public place in which the tramways or any of them are or is laid such posts standards brackets and overhead and other electric conductors mains and conduits as they may consider necessary and proper for working the same by electrical power and may remove replace or alter the position of any lamp-post or letter box in any such road street footway footpath or place Provided that the Company shall not without the consent in writing of the county council of the west riding of the county of York or otherwise without the approval of the Board of Trade place or attach any post or other support or any wire or any feeder box on or to the structure of Cottingley Bridge or Baildon Bridge.

As to posts standards and brackets.

41. Subject to the provisions of this Act and of any regulations made under this Act by the Board of Trade the design of all posts standards and brackets and their several attachments erected in the district of any road authority shall be such as the road authority and the Company may agree or as in case of difference between them may be determined by the Board of Trade.

Posts &c. to be removed if user discontinued.

42. If the Company shall discontinue the use of any posts brackets or overhead electric wires placed or maintained in or over any street or road for supplying electrical motive power to the

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carriages used upon the tramways or if the right of the Company to use electrical motive power supplied by means of any such posts brackets or wires shall cease and determine the Company shall forthwith at their own cost remove such posts brackets and wires and shall restore and make good such streets and roads to the satisfaction of the road authority and in case of default the road authority may do all things necessary for that purpose and recover the costs and expenses thereof in any court of competent jurisdiction.

43. The Company may make junctions between their tramways and any other tramway tramroad waggonway or light railway laid near their tramways and which can be worked in connection therewith but only with the consents of the owners and lessees of such tramway tramroad waggonway or light railway and (where such junctions are laid upon any road) of the road authority within whose district such junctions are intended to be laid and the provisions of the Tramways Act 1870 incorporated with this Act and of this Act with respect to the construction maintenance and working of the tramways shall apply to such junctions where laid along any road and such junctions when made shall for all purposes be deemed to be part of the undertaking of the Company.

Junctions with tramways and tramroads which can be worked in connection with Company's lines.

44. If the Company at any time find it necessary or desirable to remove snow or other matter impeding the traffic on the tramways the Company may at their own cost remove the snow or other matter to the side of the road but so as not to impede or obstruct the ordinary traffic on the road Provided that any dirt or other like matter removed by the Company from the grooves of the rails of the tramways shall not be allowed to remain on the side of the road but shall be taken away by the Company as soon as shall be reasonably practicable.

As to removal of snow &c.

45. The Company may with the consent of the owner of any building or of any column post or standard erected for lighting purposes in any road street footway footpath or place in which any of the tramways are situate attach thereto such brackets wires and apparatus as may be required for the working of the tramways by mechanical power :

Attachment of brackets to buildings.

Provided that—

- (1) Where in the opinion of the Company any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building or of such column post or standard as the case may be and to the other circumstances

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of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :

(2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building or of such column post or standard but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Company notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1) :

(3) The owner may require the Company to temporarily remove the attachments where necessary during any reconstruction or repair of the building or of such column post or standard.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack-rent shall be deemed to be the owner.

PROTECTIVE PROVISIONS.

For protec-
tion of local
and road
authorities.

46. The following provisions shall unless otherwise agreed apply and have effect for the protection of the councils of the urban districts of Ilkley and Baildon and of the rural districts of Keighley and Wharfedale (in this section severally referred to as "the council") in relation to such portions of the undertaking as are situated respectively within the said districts (that is to say) :—

(1) If and whenever the distance between the kerbstone or in places where there is no kerbstone then between the outer edge of the roadway and the nearest rail of the tramway shall be less than four feet six inches the Company shall at their own expense pave the intervening space with setts similar to those of the adjacent tramway track but such paving shall afterwards be kept in repair by the council or other the road authority for the district at their own expense save only the portion which the Company shall by law be liable to maintain Provided that this subsection shall not apply in the case of the councils of the rural districts of

Keighley and Wharfedale so long as they respectively are not the road authorities for such districts : A.D. 1903.

- (2) If and whenever the distance between the kerbstone or in places where there is no kerbstone then between the outer edge of the roadway and the nearest rail of the tramway shall be four feet six inches but less than nine feet six inches the Company shall at the request and cost of the council pave such margin with materials and in a style uniform with the paving of the adjacent tramway track and the council shall afterwards keep such paving in repair save only the portion which the Company shall by law be liable to maintain Provided that this subsection shall not apply in the case of the council of the urban district of Ilkley or in the case of the councils of the rural districts of Keighley and Wharfedale so long as such last-mentioned councils respectively are not the road authorities for such districts :
- (3) The Company in exercising the powers contained in the section of this Act whereof the marginal note is "Power to place posts wires &c." shall re-erect all lamp-posts (the position of which is altered) in a position to be approved by the council :
- (4) The period of time mentioned in subsection (1) of the section of this Act of which the marginal note is "As to purchase of undertaking" within which the council may exercise their option of purchasing the Company's plant and undertaking within the district of the council shall be thirty years such option to be re-exercisable at the expiration of every subsequent period of seven years :
- (5) The council shall (irrespective of any action or default on the part of the other local authorities within whose districts the undertaking of the Company is situate) have the right by resolution to exercise the option of purchase contained in the last preceding subsection subject to their giving to the Company (so long as the Company continue to own or have running powers over any portion of the tramways in the case of the rural district council of Keighley between Shipley and Keighley and in the case of the rural district council of Wharfedale and of the urban district councils of Baildon and of Ilkley between Shipley and Otley and Ilkley) running powers over the tramway or tramways within the district of the council upon such terms as may be agreed upon between the Company and the council or as in default

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of agreement may be fixed by arbitration as hereinafter mentioned:

(6) The Company shall deal with the surplus paving metalling or material not used or required to be retained for the reinstatement or maintenance of any road interfered with by the Company within the district of the council and mentioned in the section of this Act of which the marginal note is "Application of road materials excavated in construction of works" in manner following (that is to say) The Company shall as provided by the said section from time to time give to the surveyor of the council notice in writing that such surplus material is ready for removal and shall when a convenient place not more than one mile distant has been appointed by the said surveyor remove such surplus material thereto and if no such intimation be made to the Company by the said surveyor within fourteen days after notice given to him as aforesaid such surplus material shall thereupon become the property of the Company who may deal with the same as they think fit Any such notice as aforesaid shall be sufficiently given if left or sent by post addressed to the said surveyor at the offices of the council Provided that this subsection shall not apply in the case of the councils of the rural districts of Keighley and Wharfedale so long as they respectively are not the road authorities for such districts:

(7) The Company shall pay the costs charges and expenses of the council of and incidental to the insertion in this Act of the provisions contained therein for the protection of the council and the negotiations for the same:

(8) All matters or questions relating to or in any wise arising out of the provisions of this section shall in case of dispute between the Company and the council be referred to the decision of an arbitrator to be agreed upon between the parties or failing agreement to be appointed by the Board of Trade on the application of either of the parties.

For protection of west riding county council.

47. The following provisions shall unless otherwise agreed apply and have effect for the protection of the county council of the west riding of the county of York (in this section called "the council") in relation to such of the tramways as are situated in the several parishes of East and West Morton Esholt Hawksworth Menstone and Denton in the rural districts of Keighley and of Wharfedale (that is to say):—

(1) No tramway shall be constructed in any main road in such position as to leave a less space than four feet six inches

between any building wall or fence on either side of such road and the nearest rail: A.D. 1903.

- (2) If and whenever in any main road the distance between the kerbstone or in places where there is no kerbstone then between the outer edge of the running portion of the roadway and the nearest rail of the tramway shall be four feet six inches but less than nine feet six inches in width the Company shall at their own expense if and whenever required by the council so to do and to their satisfaction form and macadamise so much of any waste land adjoining and lying open to the roadway as shall be requisite to bring up such width to nine feet six inches and shall to the like satisfaction make proper provision for the drainage of the road so widened but the Company shall be at no further expense in so doing than the expense of so forming and macadamising the same and such portion shall thereafter be kept in repair by the council or other the road authority for the time being The term "running portion of the roadway" in this section means the portion of roadway available for vehicular traffic whether macadamised or not:
- (3) All portions of main roads which the Company may be liable to pave and of which the gradient is one in sixteen or steeper shall be paved with Yorkshire setts approved by the county surveyor:
- (4) If and whenever in any main road the distance between the kerbstone or in places where there is no kerbstone then between the outer edge of the road and the nearest rail of the tramway shall be not more than four feet six inches the Company shall at their own expense pave the intervening space with setts similar to those of the adjacent tramway track The Company shall also at the request and cost of the council pave in like manner such intervening space if more than four feet six inches and not exceeding nine feet six inches in width but such paving in each case shall afterwards be kept in repair by the council or other the road authority for the time being at their own expense save only the portion which the Company shall by law be liable to maintain:
- (5) The position of the trolley poles and feeder boxes along the roads in the said parishes shall be subject to the approval of the council subject to the right of the Company to require any difference to be referred to arbitration as hereinafter provided:

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(6) The street works by this Act authorised so far as they affect any main road or any bridge including Stockbridge Cottingley Bridge and Baildon Bridge under the jurisdiction of the council and any works to be executed with the consent of the council affecting any bridge or culvert as aforesaid shall be executed under the superintendence and to the satisfaction of the council in conformity with such plans sections and specifications as may be approved by them and which shall be submitted to them at least twenty-eight days before the commencement of such works. If the council do not within the said twenty-eight days signify their approval or disapproval of the said plans sections and specifications or their directions in relation thereto they shall be deemed to have approved thereof :

(7) If any difference arises between the Company and the council under this section such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by them.

For protec-
tion of urban
district
council of
Baildon.

48. The following provisions for the protection of the council of the urban district of Baildon (in this section called "the council") shall unless otherwise agreed apply and have effect in addition to all other provisions in that behalf contained in this Act in relation to the portion of the undertaking situated within the said district (that is to say) :—

(1) The Company shall purchase and take from the council the requisite supply of electrical energy for working by electricity the tramways within the district of the council if whenever and so long as the council are ready and willing to furnish such supply at a reasonable market price. The energy supplied by the council to the Company shall be measured to the Company at the point at which it is measured to the council and all amounts payable by the Company under this section to the council shall be payable quarterly :

(2) The Company shall give to the council six calendar months' notice in writing of the date when they reasonably anticipate that such tramways will be ready for working and the council shall not less than five months before such last-mentioned date notify in writing to the Company whether it is the intention of the council to furnish the requisite supply of electrical energy for working such tramways by electricity and in that case the point within the district of the council at which the supply will be furnished and in the event of the

council failing to give such notification within the time A.D. 1903.
aforesaid or failing to furnish such supply so soon as the
Company shall reasonably require the same the Company
may obtain such supply from any other source and if there-
after the council require the Company to take such supply
from the council the council shall pay to the Company the
actual cost which shall have been incurred by them to obtain
such substituted supply Provided that the council shall not
be liable to the Company for any loss they may sustain
owing to the default of the council in supplying such
electrical energy :

(3) In the event of the Company making any extension of their
system of tramways between Shipley and Otley and Ilkley
any application by the council for an extension of the
tramways within the district of the council shall be first
considered by the Company with a view to its being carried
into effect if it be shown to the reasonable satisfaction of
the Company that it will yield a fairly adequate return to
the Company on its cost :

(4) The provisions of subsection (8) of the section of this Act
whereof the marginal note is " For protection of local and
road authorities " shall extend and apply to the subject-
matter of this section.

49. The Company shall pay to the council of the urban district
of Burley-in-Wharfedale the sum of two hundred and fifty pounds
in respect of street works to be executed by the said council for the
purpose of facilitating the traffic on such of the tramways as are
situated within the said district Provided that if the council shall
not have commenced the said works within two months from the
date of payment of the said sum of two hundred and fifty pounds
they shall pay to the Company interest thereon at the rate of four
pounds per centum per annum by half-yearly payments until such
works shall have been actually commenced.

For protec-
tion of urban
district coun-
cil of Burley-
in-Wharfe-
dale.

50. The following provisions for the protection of the council
of the urban district of Ilkley (in this section called " the council ")
shall unless otherwise agreed apply and have effect in addition to all
other provisions in that behalf contained in this Act in relation to
the portion of the undertaking situated within the said district (that
is to say) :—

For protec-
tion of urban
district coun-
cil of Ilkley.

(1) The Company shall pay to the council the sum of five
hundred pounds towards the cost of carrying out a widen-
ing and improvement of portions of the highway between
Brook street and Ashgrove and such sum shall be payable

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within one month from the granting of the Board of Trade certificate of the fitness for public traffic of such tramways provided that the said amount shall then have been expended by the council in carrying out such extension and widening or otherwise so soon thereafter as such expenditure shall have been incurred in respect thereof by the council :

- (2) Between the Star Inn Yard and the south-east corner of Wharfe View Terrace the whole width of Leeds Road between the kerbstones shall be paved and from time to time repaired and renewed by the Company at their own expense with lava or other paving setts of a reasonably noiseless character :
- (3) The Company shall not oppose or assist in any opposition to any application which may be made by the council for an extension of the time within which they may carry into effect the Ilkley Electric Lighting Order 1901 :
- (4) The said tramways shall be divided for the purpose of fares into halfpenny stages each of which shall be not less than half a mile nor more than three quarters of a mile in length the precise limits thereof to be fixed by agreement between the Company and the council No fare shall be less than one halfpenny but in the case of cheap fares for labouring classes a fare of one halfpenny shall cover two consecutive stages :
- (5) The provisions of subsection (8) of the section of this Act whereof the marginal note is " For protection of local and road authorities " shall extend and apply to the subject-matter of this section.

For protec-
tion of urban
district coun-
cil of Otley.

51. The following provisions shall unless otherwise agreed apply and have effect for the protection of the council of the urban district of Otley (in this section called " the council ") in relation to the portion of the undertaking situated within the said district (that is to say) :—

- (1) The Company shall forthwith on the passing of this Act pay to the council the sum of three hundred and fifty pounds as a contribution towards the cost of carrying into execution by the council of the widening and improving of a certain portion (called Beech Hill) of and on the northerly side of the street named Westgate situate within the district of the council between the south-west corner of West Terrace and the south-west corner of the house at present in the occupation of Joseph Halliday Denison and being in length eighty yards or thereabouts Provided that if the council shall not

have commenced the said widening and improving within two months from the date of payment of the said sum of three hundred and fifty pounds they shall pay to the Company interest thereon at the rate of four pounds per centum per annum by equal half-yearly payments until such work shall have been actually commenced :

- (2) The Company shall in constructing the said tramways carry out and complete under the supervision and to the satisfaction of John Edward Sharpe or other the engineer and surveyor for the time being to the council (hereinafter called "the surveyor") the widening and alteration of that portion of the main Skipton and Otley Road and the bridge there situate both known as Mickle Ing (which widening and alteration are described in this Act as "Work L") and shall also at their own cost kerb and channel such road where widened and provide sufficient and proper means of conveying the surface water therefrom :

Mickle Ing Bridge shall be reconstructed with parapet walls and a road thereover the latter to be concreted and paved and flagged with a footpath on one side thereof at least :

The said works shall be executed and completed in such a manner as to prevent the water from the river Wharfe flowing into the said road :

- (3) The Company shall in constructing laying down and maintaining and renewing all or any portion of their tramways within the district of the council use pavement of a noiseless character in Kirkgate and shall use Yorkshire setts in that portion of Westgate known as Beech Hill both of which streets are within the town of Otley :
- (4) Should the tramways constructed within the district of the council be at any subsequent time extended either by the Company or the council or any other company person or body of persons beyond the point described in this Act as the terminus of Tramway No. 14 such point shall cease to be the terminus of Tramway No. 14 and shall cease to be used by the Company as such :
- (5) The Company shall not oppose or assist in any opposition to any application which may be made by the council for an extension of the time within which they may be empowered to carry into effect their Provisional Order granted under the Electric Lighting Acts 1882 and 1888 for the generating and supplying of electrical energy for lighting or other public or private purposes within their district :

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- (6) Subsections (3) (4) and (6) of the section of this Act whereof the marginal note is "For protection of local and road authorities" shall apply to the council and the provisions of subsection (8) of the said section shall apply to the subject-matter of this section and of the aforesaid subsections Subsection (5) of the said section shall also apply to the council as if the words "and of Otley" were inserted therein after the words "the urban district councils of Baildon and of Ilkley."

For protection of Bingley urban district council.

52. For the protection of the Bingley Council (in this section called "the council") the following provisions shall notwithstanding other provisions of this Act unless otherwise agreed in writing have effect in relation to such of the tramways as are situated within the district of the council (in this section called "the tramway") (that is to say) :—

- (1) Section 18 of the Tramways Act 1870 shall apply to the tramway save that three years instead of two years shall be the period for completion :
- (2) The tramway shall be constructed in accordance with the deposited plans and sections and the provisions of this section and in accordance with a specification and detailed plans and sections to be reasonably approved by the council and the council may require—
 - (a) That concrete be laid under the tramway and under the portion of road to be paved by the Company of six inches in thickness formed of four parts of broken brick or stone two parts of clean sand and one part of Portland cement ;
 - (b) That the rails shall be of the girder type of clean rolled section and weighing not less than ninety pounds per yard ;
 - (c) That the portion of the road repairable by the Company shall be paved as to a length of seventy yards opposite the parish church with approved hard wood and elsewhere with approved granite setts five inches by four inches in each case grouted or run in with hot pitch ; and
 - (d) That the portion of the road between the outside rail and the kerbstone or boundary of the roadway shall be paved in like manner where such portion is less than seven feet wide :
- (3) In the event of the Council widening the main street of Bingley from Chapel Lane to Burrage House and requesting

the Company to alter the position of the tramway the Company shall at their own expense alter and reconstruct the tramway in accordance with the reasonable requirements of the council and in the event of the council carrying out any other road improvement which will in the opinion of the council necessitate alteration or reconstruction of the tramway the Company shall at the request of the council alter or reconstruct the tramway as may be required by and at the expense of the council subject to the approval of the Board of Trade:

- (4) All road material removed during the construction of the tramway and not required by the Company for the construction thereof shall be the property of the council and the Company shall within fourteen days after receiving notice from the surveyor to the council remove the same to such place not more than one mile distant from the tramway as he may direct and if they fail so to do the council may remove the same at the expense of the Company:
- (5) All alterations to sewers drains manholes lampholes gulleys gas and water mains and services shall be executed by the council and the Company shall pay the reasonable cost of such alterations together with five per centum on the amount of such cost for superintendence:
- (6) All digging of trenches and refilling of the same and restoring the surface of roads or footways required in connection with the laying of the cables for the supply of electrical energy to the tramway shall be carried out by the council and the Company shall pay the cost together with five per centum on the amount of such cost for superintendence:
- (7) The council shall at the cost of the Company execute all necessary alterations to kerbstones channelling or flagging consequent on the widening or alteration of the level of any road for the purpose of the tramway:
- (8) The Company shall indemnify the council against any loss they may sustain by reason of the diminution or loss of the county contribution towards the maintenance of main roads in any year during the whole or part whereof the tramway shall be in course of construction if such diminution or loss shall be caused by such construction:
- (9) The council shall keep in repair that portion of the roadway which is under section 28 of the Tramways Act 1870 repairable by the Company together with the concrete substructure save that if any portion becomes out of repair within twelve months after the date of the Board of Trade

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certificate of the fitness of the tramway for public traffic through bad workmanship or defective materials the Company shall at their own expense reinstate and make good the same and the Company shall pay to the council in respect of the maintenance of roads—

- (a) The sum of three hundred and fifty pounds per annum (together with a proportionate addition for any addition to the length of track shown on the deposited plans by reason of the exercise of the powers of the section of this Act whereof the marginal note is “Power to make additional cross-overs and to double tramway lines”) by equal quarterly payments on the usual quarter days ;
 - (b) The cost of repairs to the roadway or substructure rendered necessary by any repairs alterations or renewals of the rails or equipment of the tramway together with five per centum on the amount of such cost for superintendence ; and
 - (c) The cost of making good and rolling the macadamised portion of the road after the construction of the tramway or after the same shall have been disturbed by reason of alterations repairs or renewals of the rails or equipment of the tramway together with five per centum on the amount of such cost for superintendence :
- (10) The powers of the section of this Act whereof the marginal note is “Power to make additional cross-overs and to double tramway lines” and the powers of the section whereof the marginal note is “Power to place posts wires &c.” so far as that section relates to the removal or alteration of lamp-posts or letter boxes shall only be exercised with the consent of the council :
- (11) The Company shall if required by the council and at the expense of the Company but subject to the approval of the Board of Trade connect any gas or water mains of the council within ten feet of the nearest rail of the tramway to the rails of the tramway by copper bonds so as to lessen the electrolytic action of the return current :
- (12) The Company shall maintain repair and renew to the reasonable satisfaction of the council the rails and equipment of the tramway and shall paint the posts and other ironwork with two coats of good oil paint of a colour to be approved by the council at least once every two years and in the event of the Company failing to perform any of their obligations under this subsection the council shall perform the same and the Company shall pay to the council the cost

together with five per centum on the amount of such cost for A.D. 1903.
superintendence:

- (13) The Company shall purchase or take from the council the electrical energy required for working the tramway if whenever and so long as the council are ready and willing to furnish such supply at cost price together with seven and a half per centum on such price by way of profit payable quarterly and all electrical energy so purchased shall for the purpose of ascertaining the price to be paid by the Company to the council for the same be measured at the same point at which it shall have been measured for the purpose of ascertaining the price or cost thereof to the council. Provided that if on receiving six months' notice before the tramway is expected to be completed the council do not within one month notify their willingness to give such supply of electrical energy and the place within their district whereat they will supply it or if having notified their willingness they fail to give such supply or if such cost price exceeds three halfpence per Board of Trade unit the Company may procure their supply elsewhere paying to the council seven and a half per centum on the price paid or cost incurred by the Company and if thereafter the council require the Company to take such supply from the council the council shall pay the Company the actual cost incurred by them in order to obtain such substituted supply. Provided also that the council shall not be liable to the Company for any loss they may sustain owing to the default of the council in supplying electrical energy:
- (14) The Company shall provide in addition to workmen's cars a minimum service of one car in each direction every twenty minutes between the hours of eight in the morning and ten in the evening except on Sundays:
- (15) The council may use the Company's posts standards or brackets for the purpose of fixing thereto lamps for electric lighting street names or fire alarm plates but shall make good any damage to the posts occasioned thereby:
- (16) No advertisements shall be displayed upon any such posts standards or brackets:
- (17) The council may at all reasonable hours between the hours of midnight and five in the morning and in such manner as not to interfere with the Company's traffic use the tramway for sanitary purposes and for the conveyance of scavenging refuse road metal or other materials required for the works of the council:

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(18) The provisions of the section of this Act whereof the marginal note is "As to purchase of undertaking" shall not apply to the tramway but at the expiration of thirty years from the date of the Board of Trade certificate of the fitness of the tramway for public traffic or at any earlier date if it be found under section 42 of the Tramways Act 1870 that the Company are insolvent within the meaning of that section the Company shall convey to the council without charge the tramway and all works used therewith in the district of the council but exclusive of any cars or locomotives and thereupon the powers of the Company in relation to the tramway shall vest in the council:

(19) The Company shall within one month after the passing of this Act pay to the council the sum of two thousand pounds and within one month after the date of the Board of Trade certificate of the fitness of the tramway for public traffic pay to the council the further sum of two thousand seven hundred and seventy-five pounds such sums to be applied towards the payment of the cost of acquiring land for a new road through the churchyard at Bingley and the adjoining properties authorised to be constructed by and described as "Street Work No. 3" in the Bingley Urban District Council Act 1901 Provided that the sum of forty-five thousand nine hundred pounds by that Act authorised to be borrowed by the council for the purposes of the street works thereby authorised shall be reduced by the amount of the payments received from time to time by the council from the Company under this subsection:

(20) In the event of the Company failing to perform their obligations or any of them under subsections (2) (3) (14) or (16) of this section the Company shall (without prejudice to any other remedies of the council) forfeit and pay to the council the sum of five pounds for every day during which they shall be so in default and the sums so payable may be recovered by the council from the Company as a civil debt:

(21) Any difference between the council and the Company under this section shall be referred to an arbitrator appointed by the Board of Trade.

For protection of Bradford Corporation.

53. And whereas the tramways between Frizinghall and Saltaire referred to in section 22 of the Bradford Tramways and Improvement Act 1897 and hereinafter referred to as "the Frizinghall tramways" are worked by the mayor aldermen and citizens of the city of Bradford (hereafter called "the corporation

of Bradford") in pursuance of the said Act and on terms settled by arbitration in pursuance of the said Act Therefore— A.D. 1903.

- (1) Nothing in the section of this Act of which the marginal note is "Agreements with urban district council of Shipley" or the section of this Act of which the marginal note is "Agreements with local authorities and others as to supply of electrical energy" shall (unless with the consent of the corporation of Bradford under their common seal) extend or apply to the Frizinghall tramways whilst so worked or any part thereof or authorise any agreement for the supply of electrical energy to the Company by the Shipley Urban District Council for the purpose of the Frizinghall tramways or any part thereof:
- (2) The Company shall not acquire or take a transfer or lease of the electrical undertaking of the Shipley Urban District Council:
- (3) In the event of the Company acquiring a lease of Tramway No. 4 by the Shipley Improvement Act 1901 authorised the Company or the Shipley Council shall provide by a junction with the Frizinghall tramways so worked by the corporation of Bradford tramway access to the car shed of the corporation now in course of construction in the district of Shipley near the junction of Saltaire Road and Bradford Road.

54. In addition to any obligation imposed on the Company by any of the Acts incorporated herewith in this behalf the Company shall so construct maintain and use the tramways over any water main belonging to the mayor aldermen and citizens of the city of Bradford as not injuriously to affect the same and in the event of any injury or damage being caused to any such water main by the construction maintenance or user of the tramways the Company shall make good at their own expense and restore the same to the reasonable satisfaction of the said corporation. For further protection of Bradford Corporation.

55. For the protection of Percy Bence Trower Agnes Marian Bence Trower Colonel Guy Lenox Bence Lambert Ida Millicent Bence Lambert Edith Mabel Bence Robert Mascall Curteis Charles Whitbread Graham and Major Sydney Charles Fishburn Jackson or other the owner or owners of the Riddlesden Hall Estate (in this section referred to as "the owners") the following provisions shall unless otherwise agreed between the owners and the Company have effect (that is to say):— For protection of Riddlesden Hall Estate.

- (1) The Company shall not without the consent of the owners enter upon take or use any portion of the properties

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numbered respectively on the deposited plans 5A in the parish of Keighley and 5 in the parish of East and West Morton or divert or close the bridge known as Stockbridge or the approaches leading thereto unless and until the Company shall have conveyed or caused to be conveyed to the owners the land coloured pink and yellow on the plan dated the sixteenth day of June one thousand nine hundred and three and signed in quadruple by the Right Honourable Lord Hatherton the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred and one copy of which has been deposited in the office of the Clerk of the Parliaments House of Lords (hereinafter in this section referred to as "the agreed plan") and on the completion of such conveyance the owners shall in exchange convey to the Company the fee simple of the two pieces of land coloured blue on the agreed plan :

- (2) It shall not be lawful for the Company without the consent of the owners to enter upon take or use any greater quantity of the land of the owners than that coloured blue on the agreed plan :
- (3) On the completion of the diversion of the existing road leading from Keighley to Bradford by this Act authorised the Company shall at their own expense erect proper fence walls along the boundary line of the said property numbered 5 and the land coloured pink on the agreed plan where such properties abut on the said road when diverted with a proper field gate in each of such fences and shall in like manner fence the western side of the land coloured pink and yellow on the agreed plan and shall make good all drains and drainage work of the said properties numbered 5 and 5A which may be interfered with by the construction of the works by this Act authorised :
- (4) The Company shall at their own expense level and make suitable for agricultural purposes the lands coloured pink and yellow on the agreed plan with a proper approach from the diverted road and shall for that purpose remove the soil from the lands coloured blue on the agreed plan and spread the same upon the lands coloured pink and yellow thereon and sow such lands with grass seed The Company shall cause the portion of the said property numbered 5 which abuts upon the altered approach road to the said bridge to be sloped with a reasonable gradient to such approach road and may for that purpose remove so much of the surface of the said property as may be necessary :

(5) All such works shall be done to the reasonable satisfaction of the owners or their surveyor and notice of the intention to commence such works shall one month prior to such commencement be served by the Company upon such owners or such surveyor : A.D. 1903.

(6) If any difference shall arise between the owners and the Company under this section such difference shall be determined by an arbitrator to be agreed upon between the owners and the Company or failing agreement to be appointed in accordance with the provisions of the Arbitration Act 1889.

56. For the protection of the Most Noble Spencer Compton Duke of Devonshire K.G. his heirs and assigns (in this section called "the owner") the following provisions shall unless otherwise agreed between the Company and the owner apply and have effect (that is to say) :— For protec-
tion of Duke
of Devon-
shire.

(1) The Company shall not divert any portion of the existing road leading from Keighley to Bradford where the same abuts upon the land of the owner on the east side of the Cornwall Road in the borough of Keighley nor construct any portion of Tramway No. 1 upon the said portion of road or the proposed new bridge and approaches (Work A) by this Act authorised unless and until the Company shall have conveyed or caused to be conveyed to the owner free of cost and free of all rights of way over the same the land coloured and edged green on the plan dated the sixteenth day of June one thousand nine hundred and three and signed in quadruple by the Right Honourable Lord Hatherton the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred and one copy of which has been deposited in the office of the Clerk of the Parliaments House of Lords or such interest in the said land coloured and edged green as may not already be vested in the owner together with full rights of access for the owner between such land and the proposed diversion of the said road and all other rights pertaining to an owner of land adjoining a public street in the borough of Keighley :

(2) Upon the said land coloured and edged green being so conveyed to him by the Company the owner shall convey to the Company or to such person as they shall nominate the piece of land coloured yellow on the said plan on payment to the owner of a sum at the rate of five shillings per square yard :

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- (3) The respective titles to the said pieces of land shall not be deduced or investigated except at the expense of the party requiring the same :
- (4) The Company shall in carrying out the diversion of the road between Keighley and Bradford construct and maintain a retaining and fence wall along the south side of such diversion where the same abuts upon the said land coloured and edged green of such height and strength as shall be reasonably required by the surveyor of the owner and with a perpendicular face to the land of the owner Such wall shall be constructed if so required by the Company upon the land of the owner and whether constructed on the land of the owner or not shall when built be the property of the owner who shall be entitled to build upon or otherwise use the said wall but not so as to injuriously affect the stability thereof :
- (5) The Company shall also construct to the reasonable satisfaction of the surveyor of the owner a boundary wall or fence at least four feet six inches in height above the surface of the ground along the eastern boundary of the said land coloured and edged green and along the western boundary of the said piece of land coloured yellow such wall to be built upon the land and to be the property of the owner :
- (6) The Company shall in making such diversion restore to the reasonable satisfaction of the surveyor of the owner all drains and drainage works affecting the property of the owner which may be interfered with by the construction of the works of the Company :
- (7) If any difference shall arise between the owner and the Company under this section such difference shall be determined by a single arbitrator in accordance with the provisions of the Arbitration Act 1889.

For protection of
Charles
Staniforth
Greenwood
of Swarcliffe
Hall.

57. For the protection of Charles Staniforth Greenwood of Swarcliffe Hall his heirs and assigns (in this section called "the owner") the following provisions shall unless otherwise agreed between the Company and the owner apply and have effect (that is to say) :—

- (1) The Company shall before commencing the construction of any portion of the tramways within the parish of East and West Morton and borough of Keighley or the diversion of the existing road leading from Keighley to Bradford where the same abuts upon the land of the owner at Stockbridge

purchase and acquire from the owner and the owner shall A.D. 1903.
sell to the Company the lands (hereinafter referred to as
"the said lands") coloured pink on the plan dated the
sixteenth day of June one thousand nine hundred and three
and signed in triplicate by the Right Honourable Lord
Hatherton the Chairman of the Committee of the House of
Lords to whom the Bill for this Act was referred and one
copy of which plan has been deposited in the office of the
Clerk of the Parliaments House of Lords The compensation
to be paid by the Company to the owner for the said lands
shall be nine hundred and twenty-five pounds and such sum
shall be paid before the Company enter upon the said lands
and shall include the value of the said lands severance
damage and all other claims competent to the owner under
the Lands Clauses Acts or otherwise :

- (2) The Company shall in carrying out the diversion of the
said road construct and maintain a retaining and fence wall
along the north side thereof where the same abuts upon the
said lands of such height and strength as shall be reasonably
required by the owner with a perpendicular face to the land
of the owner Such wall shall be constructed if so required
by the Company upon the land of the owner and whether
constructed on the land of the owner or not shall when built
be the property of the owner who shall be entitled to build
upon or otherwise use the said wall but not so as to
injuriously affect the stability thereof :
- (3) The Company shall in making such diversion restore to the
reasonable satisfaction of the owner all drains and drainage
works affecting the property of the owner which may be
interfered with by the construction of the works of the
Company :
- (4) The western approach road included in the Work A by this
Act authorised shall be made and completed by the Company
to its finished surface level forthwith on the conveyance of
the said lands by the owner to the Company :
- (5) The Company shall if required by and to the reasonable
satisfaction of the owner and on the land of the owner
provide an access by footsteps from the said road to the
front and by an approach road to the back of the house
numbered 2 in the parish of East and West Morton on the
deposited plans :
- (6) The Company may provide an access by footsteps from the
said road on the north side thereof to the public footpath

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or right of way situated on the west side of the River Aire:

- (7) If any difference shall arise between the owner and the Company under this section such difference shall be determined by a single arbitrator to be appointed in accordance with the provisions of the Arbitration Act 1889.

For protection of Midland and North Eastern Railway Companies.

58. For the protection of the Midland and North Eastern Railway Companies (hereinafter in this section called "the two companies") the following provisions shall apply and have effect:—

- (1) So much of Tramway No. 9 as will pass under the bridge carrying the Otley and Ilkley Joint Railway of the two companies over Menstone Lane shall be so constructed and maintained as not injuriously to affect the structure of the said bridge or the piers and abutments thereof:
- (2) In the event of any injury being caused to the said bridge or the piers or abutments thereof by the construction maintenance repairing user or removal of the said tramway or the works in connection therewith the two companies may at the expense of the Company restore such bridge or the part thereof which may be injured to as good a state and condition as it was in before such injury was occasioned:
- (3) Whenever and so often as the two companies shall require to widen lengthen strengthen reconstruct alter or repair such bridge or to widen or alter their railway or to lift or support such bridge owing to the subsidence thereof caused by the minerals thereunder having been or being worked or gotten and it shall be necessary for effecting any of such purposes that the working and user of the tramway under such bridge shall be wholly or partially stopped or delayed or that such tramway shall be temporarily diverted or wholly or in part taken up or removed and shall except in cases of emergency give to the Company fourteen clear days' notice in writing requiring such stoppage delay or diversion taking up or removal the working and user of such tramway shall be stopped or delayed or such tramway shall be diverted or taken up or removed accordingly at the expense of the Company and under the superintendence of their engineer (if such engineer shall give such superintendence) but only for so long as the two companies may find it to be absolutely necessary for effecting such purpose and without their being liable for any compensation claims and demands charges costs and expenses for or in respect of such stoppage or delay or in any way relating thereto and the Company shall repay

to the two companies any additional expense of the maintenance of the structure of the said bridge and the cost of any reconstruction strengthening underpinning or other works rendered necessary by the construction and working of the said tramway : A.D. 1903.

- (4) In the event of any of the telegraphic telephonic or electrical signal communications of the two companies being at any time injuriously affected by the working and use of the said tramway by electricity the Company shall at their own expense execute such remedial works as may be necessary for the protection of the two companies any difference arising between the Company and the two companies regarding such remedial works to be determined by arbitration as hereafter provided :
- (5) All works which may be necessary in constructing and maintaining the said tramway or for working the same by mechanical power under the said bridge works or property of the two companies shall be constructed and maintained in all things at the expense of the Company and to the reasonable satisfaction of the principal engineer of the two companies in such manner and according to plans sections and specifications to be previously submitted to and reasonably approved by him :
- (6) In the event of the said tramway being worked by electricity on the overhead system the Company may attach such wires and insulators as may be necessary to such bridge of the two companies Provided that the method of attaching and the position of any such wire or insulator shall be subject to the approval of the principal engineer of the two companies and when the two companies shall require to repair or paint such bridge the Company shall in order to ensure the safety of the workmen employed in such repairing or painting cut off the electric current from the trolley wires under such bridge at such times as shall be reasonably required by the said principal engineer of the two companies and as shall not unduly interfere with the traffic on the tramway unless the Company shall have previously adopted some other means of protection to workmen which shall have been approved by the said principal engineer :
- (7) Any dispute or difference that may arise between the two companies and the Company with reference to the provisions of this section or in any way arising thereout

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or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be nominated by the Board of Trade on the application of the two companies or the Company and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
tion of Mid-
land Railway
Company.

59. For the protection of the Midland Railway Company (hereinafter in this section called "the Midland Company") the following provisions shall apply and have effect:—

- (1) So much of Tramways Nos. 1 3 6 and 8 as will pass over bridges carrying public roads over the Midland Railway and so much of Tramway No. 5 as will pass under the bridge in the parish of Baildon carrying the Midland Railway over the main road to Otley shall be so constructed and maintained as not injuriously to affect the structure of the said bridges or the approaches piers and abutments thereof:
- (2) In the event of any injury being caused to the said bridges or the approaches piers or abutments thereof respectively by the construction maintenance repairing user or removal of any of the tramways by this Act authorised or the works in connection therewith the Midland Company may at the expense of the Company restore such bridges or the part or parts thereof which may be injured to as good a state and condition as they were in before such injury was occasioned and the Company shall indemnify the Midland Company against all sums costs and expenses which they may pay or be put to in repairing and maintaining so much of the road over such bridges as the Company are liable to maintain and repair under section 28 of the Tramways Act 1870:
- (3) In constructing or working Tramway No. 1 over the bridge carrying the Bradford Road over the Midland Railway in the borough of Keighley the Company shall be subject to the like conditions and restrictions as affect the corporation of Keighley:
- (4) The bridge to be constructed by the Company to carry Menstone Lane over the Midland Company's Otley and Ilkley Extension Railway shall be constructed with a clear span measured on the square of fifty-six feet and with a clear headway throughout of fourteen feet six inches:
- (5) Notwithstanding anything on the deposited plans the commencement of the proposed Tramway No. 10 shall be at

a point not less than fifty feet measured in a northerly direction from the north side of the bridge carrying the Midland Railway over Brook Street in the urban district of Ilkley: A.D. 1903.

- (6) Whenever and so often as the Midland Company shall require to widen lengthen strengthen reconstruct alter or repair such bridges or to widen or alter their railways or to lift or support any such bridge owing to the subsidence thereof caused by the minerals thereunder having been or being worked or gotten and it shall be necessary for effecting any of such purposes that the working and user of any of the tramways over or under such bridges should be wholly or partially stopped or delayed or that such tramways should be temporarily diverted or wholly or in part taken up or removed and shall except in cases of emergency give to the Company fourteen clear days' notice in writing requiring such stoppage delay or diversion taking up or removal the working and user of such tramways shall be stopped or delayed or such tramways shall be diverted or taken up or removed accordingly at the expense of the Company and under the superintendence of their engineer (if such engineer shall give such superintendence) but only for so long as the Midland Company may find it to be absolutely necessary for effecting such purpose and without their being liable for any compensation claims and demands charges costs and expenses for or in respect of such stoppage or delay or in any way relating thereto:
- (7) In case it shall be found that any such strengthening is necessary owing to the carriages or other vehicles on any of the tramways being or being intended to be moved by steam electrical or any mechanical power such strengthening shall be effected in all things at the expense of the Company who shall also pay to the Midland Company all additional expense which they may incur or be put to in effecting any such widening lengthening strengthening reconstruction alterations repairs lifting or supporting by reason of the existence of the tramways so passing or any of the works connected therewith:
- (8) If in the opinion of the Midland Company or in case of difference between them and the Company of an arbitrator to be appointed as hereinafter provided it shall be necessary in consequence of the construction or working of the tramways for the Midland Company to purchase or pay compensation

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for any minerals required to be left unworked for the protection and safety of the works and property of the Midland Company or for the safety of any works constructed under the powers of this Act then the Company shall on demand pay to the Midland Company all costs and expenses incurred by them in relation to any such purchase or payment of compensation and the amount of such costs and expenses or as the case may be the amount of the additional cost and expenses shall in case of difference be determined by arbitration as hereafter provided :

- (9) If by reason of the construction of the tramways or of the proposed generating station it shall become necessary to specially add to or alter any signal cabins signal posts signals telegraph poles or wires or other similar works upon the railway of the Midland Company the same shall be so added to or altered by the Midland Company and the reasonable expense thereof shall be repaid to the Midland Company by the Company :
- (10) The Company shall bear and on demand pay to the Midland Company the expense of the employment by the Midland Company during the execution or repair of any work under this Act affecting their said railway of a sufficient number of inspectors watchmen and signalmen to be appointed by the Midland Company for watching and signalling the same with reference to and during the execution of any work of the Company and for preventing all interference obstruction danger or accident from any of the operations or from the acts or defaults of the Company or their contractors or any person in the employment of the Company or of their contractors with reference thereto :
- (11) In the event of any of the telegraphic telephonic or electrical signal communications of the Midland Company being at any time injuriously affected by the working and use of the said tramway by electricity or by the construction and use of the proposed generating station the Company shall at their own expense execute such remedial works as may be necessary for the protection of the Midland Company any difference arising between the Company and the Midland Company regarding such remedial works to be determined by arbitration as hereafter provided :
- (12) All street works by this Act authorised affecting the railway lands and property of the Midland Company and all works which may be necessary in constructing and main-

taining any of the tramways or working the same by mechanical power over or under any bridge works or property of the Midland Company shall be constructed and maintained in all things at the expense of the Company and to the reasonable satisfaction of the principal engineer of the Midland Company in such manner and according to plans sections and specifications to be previously submitted to and reasonably approved by him : A.D. 1903.

- (13) In the event of any of the tramways being worked by electricity on the overhead system the Company may attach such wires and insulators as may be necessary to any bridge or other work of the Midland Company Provided that the method of attaching and the position of any such wire or insulator shall be subject to the approval of the principal engineer of the Midland Company :
- (14) In constructing the widening of Menstone Lane (Work E) the Company shall only acquire so much of the field belonging to the Midland Railway Company numbered 57 in the parish of Menstone in the rural district of Wharfedale as shall be absolutely necessary for the purpose of such widening and the Midland Company shall have a full right of frontage to the widened road :
- (15) If and when the Midland Company shall require to repair or paint any such bridge the Company shall in order to ensure the safety of the workmen employed in such repairing or painting cut off the electric current from the trolley wires under such bridge at such bridge at such times as shall be reasonably required by the said principal engineer of the Midland Company and as shall not unduly interfere with the traffic on the tramways unless the Company shall have previously adopted some other means of protection to workmen which shall have been approved by the said principal engineer :
- (16) If during the execution or by reason of the failure of any of the works or any act or omission of the Company or of their contractors or of any person in the employ of the Company or of their contractors the railway of the Midland Company shall be injured or damaged or the traffic thereon delayed such injury or damage shall be forthwith made good by the Company at their own expense and in the event of their failing so to do the Midland Company may make good the same and recover the expense thereof with costs against the Company and the Company shall indemnify the Midland

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Company against all losses which the Midland Company may sustain and shall pay all costs charges and expenses which the Midland Company may be put to or incur during such execution or by reason of such failure act or omission as aforesaid :

- (17) Notwithstanding anything in this Act contained the Company shall not enter upon take or use compulsorily any lands or property of the Midland Company in the urban district and parish of Bingley without the consent in writing of that company under their common seal :
- (18) If the Company shall hereafter acquire under the powers of this Act the properties numbered on the deposited plans 58 and 59 in the parish of Menstone in the rural district of Wharfedale in the west riding of the county of York or any portion thereof to which the provisions of this section will apply they shall within three months of such acquisition offer to the Midland Company to sell and convey to that company a strip of land adjoining the Midland Railway and on the south-west side of the said land of a uniform width throughout of thirty-three feet and if within one month after the receipt of such offer the Midland Company accept the same the purchase money or other consideration to be paid by the Midland Company to the Company for the purchase of the said strip of land shall be settled in case of difference by arbitration as if the purchase were made by the Midland Company under the powers of the Lands Clauses Acts :
- (19) Any dispute or difference that may arise between the Midland Company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be nominated by the Board of Trade on the application of the Company or the Midland Company and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

As to tramways in borough of Keighley.

60. Whereas the Keighley Corporation are promoting in the present session of Parliament an Order under the Tramways Act 1870 the short title whereof is the Keighley Corporation Tramways Order 1903 And whereas the tramways authorised by that Order (hereinafter referred to as "the Order of 1903") connect with and will in part be laid along the same road as portion of the Tramway No. 1 by this Act authorised And whereas it is expedient in order to facilitate traffic between the borough of Keighley and the districts and places in which the tramways by this Act authorised

are situate that the following provisions should have effect Be it A.D. 1903.
enacted as follows (that is to say) :—

- (1) So much of Tramway No. 1 as is situate between its commencement and a point one hundred and two yards or thereabouts measured along the centre line of the road between Keighley and Bradford in a south-westerly direction from a point in line with the Ordnance bench mark on the bridge by which the said road is carried over the River Aire shall not be constructed unless the Keighley Corporation shall have failed to construct the Tramway No. 1 authorised by the Order of 1903 within the period limited by that Order in that behalf or within such extended period as the Board of Trade may direct :
- (2) The Keighley Corporation shall not construct the Tramway No. 1 authorised by the Order of 1903 beyond the point marked on the plans deposited in respect of that Order as indicating the distance from the commencement of that Tramway of 1 mile 8·6 chains :
- (3) On the construction by the Keighley Corporation of the said Tramway No. 1 the Company may construct and maintain all works necessary for effecting junctions between their tramway and that tramway and for utilising the plant and machinery for working the same and the Company or any company body or person for the time being working the tramways of the Company or any part thereof may run over and use with their engines carriages waggons and officers and servants in charge of engines carriages and waggons for the purposes of conveying passengers parcels and passengers' luggage the tramways of the Keighley Corporation authorised by the Order of 1903 together with all sidings junctions plant machinery motive power apparatus works and conveniences of and connected with the same and as regards traffic conveyed by the Company or any such company body or person as aforesaid they may demand and take rates and charges upon and in respect of the said tramways of the Keighley Corporation not exceeding the rates and charges from time to time authorised to be demanded in respect thereof The terms conditions and regulations in respect of the use and the tolls and other consideration to be paid for the same shall (if not agreed upon between the Company and the corporation) be from time to time determined by the Board of Trade Provided that at the time of determining such tolls and other consideration the Board of Trade shall

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also determine what (if any) proportion of the cost incurred by the Keighley Corporation in widening and reconstructing Cavendish Street and Bradford Road for tramway purposes shall be paid by the Company. In running over and using the said tramways of the Keighley Corporation and in using any conveniences in accordance with the provisions hereinbefore contained the regulations and byelaws for the time being in force on those tramways shall be at all times observed so far as such regulations and byelaws shall be applicable:

- (4) The Company shall provide in addition to workmen's cars a minimum service of one car in each direction every twenty minutes between the hours of eight in the morning and ten in the evening except on Sundays and every car run by the Company over the tramways of the Keighley Corporation shall not run for a shorter distance than from or to the Mechanics' Institute to or from Cross Flats:
- (5) The period of time mentioned in subsection (1) of the section of this Act of which the marginal note is "As to purchase of undertaking" within which the Keighley Corporation may exercise their option of purchasing the plant and undertaking of the Company within the borough of Keighley shall be thirty years and such option shall be re-exerciseable at the expiration of every subsequent period of seven years.

RATES AND REGULATIONS.

Passengers' fares.

61. The Company may demand and take for every passenger travelling upon the tramways or any part or parts thereof including every expense incidental to such conveyance a fare not exceeding one penny per mile and in computing the said fare the fraction of a mile shall be deemed a mile but the Company may charge for any distance not exceeding two miles any sum not exceeding twopence.

Passengers' luggage.

62. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof provided that such luggage be carried by hand and at the responsibility of the passenger and shall not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

Carriage of goods &c.

63. The tramways may be used for the carriage of passengers animals goods minerals articles and things but the Company shall

not be bound unless they think fit to carry any animals goods minerals articles or things other than personal luggage as aforesaid and not exceeding twenty-eight pounds in weight. A.D. 1903.

64. The Company may demand and take in respect of any animals goods minerals articles or things conveyed by them on the tramways including every expense incidental to such conveyance (except a reasonable sum for loading and unloading and for delivery and collection of goods minerals parcels and other things and any other service incidental to the business of a carrier where any such service is performed by the Company) any rates or charges not exceeding the rates per mile following in respect of animals conveyed on the tramways:—

For every horse mule or other beast of draught or burden fourpence:

For every ox cow bull or head of cattle threepence:

For calves pigs sheep and small animals one penny halfpenny.

Goods.

For all coals coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways per ton twopence:

For all iron ironstone iron ore pig iron bar iron rod iron sheet iron hoop iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought iron not otherwise specially classed herein and for heavy iron castings including railway chairs per ton twopence halfpenny:

For all sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings per ton threepence:

For cotton wools drugs manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein per ton fourpence:

For every carriage of whatever description one shilling.

65. With respect to small parcels and single articles of great weight the Company may demand and take any rates and charges not exceeding the following (that is to say):—

For any parcel not exceeding seven pounds in weight threepence:

Rates for small parcels and single articles of great weight.

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For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight fivepence :

For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight sevenpence :

For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight ninepence :

For any parcel exceeding fifty-six pounds but not exceeding five hundred pounds in weight such sum as the Company may think fit :

Provided that no parcel under fifty-six pounds in weight exceed four feet in length or measure more than twelve cubic feet :

Provided also that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages :

For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage shall exceed four tons but shall not exceed eight tons such sum as the Company may think fit not exceeding two shillings per ton per mile :

For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage shall exceed eight tons such sum as the Company may think fit.

Regulations
as to rates on
tramways.

66. In respect of the rates and charges which the Company are by this Act authorised to make in respect of animals goods minerals articles or things conveyed on the tramways the following provisions shall have effect (that is to say) :—

For animals goods minerals articles or things conveyed on the tramways for a less distance than two miles the Company may demand rates and charges as for two miles :

A fraction of a mile beyond an integral number of miles shall be deemed a mile :

For a fraction of a ton (except in the case of small parcels) the Company may demand rates according to the number of quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton :

With respect to all articles except stone and timber the weight shall be determined according to the Imperial avoirdupois weight :

With respect to stone and timber fourteen cubic feet of stone A.D. 1903.
 forty cubic feet of oak mahogany teak beech or ash and
 fifty cubic feet of any other timber shall be deemed one ton
 weight and so in proportion for any smaller quantity :

With respect to bulky articles of goods the Company shall have
 the option of charging per ton measurement reckoning at the
 rate of fifty cubic feet to the ton.

67.—(1) The Company at all times after the opening of the Cheap fares
for labouring
classes.
 tramways for public traffic shall and they are hereby required to run
 a proper and sufficient service of carriages for artizans mechanics
 and daily labourers each way every morning and every evening
 (Sundays Christmas Day and Good Friday and bank holidays always
 excepted) at such hours not being later than eight in the morning
 or earlier than five in the evening respectively as may be most
 convenient for such workmen going to and returning from their
 work at fares not exceeding one halfpenny for every mile or fraction
 of that distance but the Company shall not be bound to take any
 fare less than one penny On Saturdays the Company in lieu of
 running such carriages after five o'clock in the evening shall run
 the same at such hours between noon and two o'clock in the
 afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper
 and sufficient service is not provided the Board after considering
 the circumstances of the locality may by order direct the Company
 to provide such service as may appear to the Board to be
 reasonable.

(3) The Company shall be liable to a penalty not exceeding
 five pounds for every day during which they fail to comply with any
 order under this section.

68. The Company shall not take or demand on Sundays or As to fares
on Sundays
and holidays.
 any public holiday any higher fares or charges than those levied by
 them on ordinary week days.

69. If at any time after three years from the opening for Periodical
revision of
rates and
charges.
 public traffic of the tramways or any portion thereof or after three
 years from the date of any order made in pursuance of this section
 in respect of the tramways or any portion thereof it is represented
 in writing to the Board of Trade by the local authority of any
 district in which the tramways or such portion are or is wholly or
 partly situate or by twenty inhabitant ratepayers of that district or
 by the Company that under the circumstances then existing all or
 any of the fares or other charges demanded and taken in respect of
 the traffic on the tramways or on such portion should be revised the

A.D. 1903. Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the fares or charges should be revised the said Board may subject to the maximum fares and charges authorised by this Act by order in writing alter modify reduce or increase all or any of the fares or charges to be taken in respect of the tramways or on any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section.

Byelaws by
Board of
Trade.

70. Subject to the provisions of this Act the Board of Trade may make byelaws with regard to any of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say):—

For regulating the use of any bell whistle or other warning apparatus fixed to the engines or carriages:

For regulating the emission of smoke or steam from engines used on the tramways:

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety:

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages:

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

Byelaws
by local
authority.

71. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaws sanctioning a higher rate of speed than that authorised by this Act or by the Board of Trade regulations.

Penalty for
malicious
damage.

72. If any person wilfully does or causes to be done with respect to any apparatus used for or in connection with the working

of any tramway of the Company anything which is calculated to obstruct or interfere with the working of such tramway or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any tramway of the Company shall be liable to a penalty not exceeding twenty pounds.

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MOTIVE POWER.

73. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

Provisions
as to motive
power.

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade:
- (2) The Board of Trade shall make regulations (in this Act referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the tramways and for regulating the use of electrical power:
- (3) The Company or any other company or person using any mechanical power on the tramways contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof:
- (4) The Board of Trade if they are of opinion—
 - (A) That the Company or such other company or person have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or
 - (B) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public;
 may by order either direct the Company or such other company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the

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Company or such other company or person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

Special provisions as to use of electrical power.

74. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages :—

- (1) The Company shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Company shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Company shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Company either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with

any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents: A.D. 1903.

(6) If any difference arises between the Company and any other party with respect to anything hereinbefore in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :

(7) The expression "Company" in this section shall include licencees and any person owning working or running carriages over any tramway of the Company.

75. Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration. Alteration of telegraph lines of Postmaster-General.

76. In the event of any tramways of the Company (including tramways leased to or worked by the Company) being worked by electricity the following provisions shall have effect:— For protection of Post Office telegraph lines.

(1) The Company shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Company as to compliance with this subsection shall be determined by arbitration :

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Company of their electric lines and works or by the working of the

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undertaking of the Company the Company shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

- (3) Before any electric line is laid down or any act or work for working the tramways aforesaid or any part thereof by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Company or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Company and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work :

Any difference which arises between the Postmaster-General and the Company as to any requirement so made shall be determined by arbitration :

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Company is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Company's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Company enter any of the Company's works for the purpose of inspecting the Company's plant and the working of the same and the Company shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Company pursuant to the Board of Trade regulations :

- (5) In the event of any contravention of or wilful non-compliance with this section by the Company or their agents the Company shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :

- (6) Provided that nothing in this section shall subject the Company or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Company or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Company by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression "the Company" includes their lessees and any person owning working or running carriages on any of the tramways of the Company.

77. The provisions of sections 26 to 33 and 41 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Company for the purposes of mechanical power were parts of the tramway.

Apparatus used for mechanical power to be deemed part of tramway.

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Power to
acquire
patent rights.

78. For the purpose of using mechanical power the Company may acquire hold and exercise patent and other rights or licences relating to motive power or otherwise but not so as to acquire any exclusive right therein.

CAPITAL &c.

Capital.

79. The capital of the Company shall be three hundred and seventy-two thousand pounds in three hundred and seventy-two thousand shares of one pound each.

Shares not
to be issued
until one
fifth paid.

80. The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share is paid in respect thereof.

Receipt in
case of per-
sons not sui
juris.

81. If any money is payable to a shareholder or mortgagee being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Power to
borrow.

82. The Company may borrow on mortgage of the undertaking any sum not exceeding in the whole twelve thousand four hundred pounds in respect of each thirty-seven thousand two hundred pounds of capital but no part of any of the before-mentioned sums of twelve thousand four hundred pounds shall be borrowed until the whole of the shares for the portion of the capital in respect of which the borrowing powers are to be exercised are issued and accepted and one half thereof is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for the whole of such portion of capital have been issued and accepted and that one half of such portion of capital has been paid up and that not less than one fifth part of the amount of each separate share in such portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such shares were issued bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also that such persons or their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Rights of
mortgagees

83. Every mortgage of the Company's undertaking shall be deemed to comprise all purchase money which may be paid to the

Company in the event of a compulsory sale to the local authority under section 43 of the Tramways Act 1870 and may comprise all or any moneys carried to the contingency fund according to the terms of the mortgage. A.D. 1903.
on sale of
tramways.

84. Every mortgage deed granted by the Company under this Act shall be endorsed with notice that such mortgage will not remain a charge upon the tramways or the undertaking or any part thereof in the event of purchase by the local authority. Endorsement
of power of
future pur-
chase by local
authority.

85. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than three thousand pounds in the whole. Appointment
of receiver.

86. The Company shall not create debenture stock. Company not to
create debenture
stock.

87. All moneys raised under this Act whether by shares or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable. Application
of moneys.

88. All moneys to be borrowed on mortgage under this Act from the time when the same shall be advanced and the interest for the time being due thereon shall have priority against the Company and all the property from time to time of the Company over all other claims on account of any debts incurred or to be incurred or engagements entered into or to be entered into by them. But nothing in this section shall affect any claim in respect of land acquired by the Company for the purposes of this Act or injuriously affected by the construction of the tramways or by the exercise of any of the powers conferred upon the Company. Money bor-
rowed on
mortgage;
to have
priority.

89. The first ordinary meeting of the Company shall be held within twelve months after the passing of this Act. The subsequent ordinary meetings of the Company shall be held in the month of April in every year or at such other time as shall be appointed for that purpose by an order of a general meeting. First and
subsequent
ordinary
meetings.

90. The number of directors shall until the first ordinary meeting of the Company be five but the Company may at that or at any subsequent ordinary meeting increase the number to seven and may from time to time reduce and again increase the number provided that the number be never less than three nor more than seven. Number of
directors.

91. The qualification of a director shall be the possession in his own right of shares of the nominal value of one thousand pounds. Qualification
of directors.

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Quorum of meetings.

First and subsequent directors.

92. The quorum of a meeting of directors shall be three and of a general meeting of the Company shall notwithstanding anything in the Companies Clauses Consolidation Act 1845 contained be a number of shareholders present in person or by proxy holding in the aggregate not less than one twentieth of the capital of the Company.

93. Alfred Simeon Joseph Musgrave John Beaver White Robert Cornelius Quin and two other persons to be nominated by them or the majority of them and consenting to such nomination shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or nominated as aforesaid or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act or nominated as aforesaid being (if they continue qualified) eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

Auditors not required to hold shares.

94. The Company may elect a single auditor or a firm of accountants who need not hold shares in the Company.

Interim dividend.

95. The directors may in any year without calling a meeting of shareholders for the purpose declare and pay such interim half-yearly dividend out of the then ascertained profits of the Company as in their judgment the position of the Company justifies.

Closing of transfer books previous to declaring interim dividend.

96. It shall be lawful for the directors to close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the principal office of the Company is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the party claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

97. Notwithstanding anything in this Act or in any Act or Acts incorporated therewith the Company may out of any money by this Act authorised to be raised pay interest at such rate not exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him from the respective times of such payments until the expiration of the time limited by this Act for the completion of the works by this Act authorised or such less period as the directors may determine but subject always to the conditions hereinafter stated (that is to say):—

A.D. 1903.
Power to
pay interest
out of capital
during con-
struction.

- (A) No such interest shall begin to accrue until the Company shall have deposited with the Board of Trade a statutory declaration by two of the directors and the secretary of the Company that two thirds at least of the share capital authorised by this Act in respect of which such interest may be paid has been actually issued and accepted and is held by shareholders who or whose executors administrators or assigns are legally liable for the same:
- (B) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear:
- (C) The aggregate amount to be so paid for interest shall not exceed twenty-four thousand pounds and the amount so paid shall not be deemed share capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one third of the amount paid for interest as aforesaid:
- (D) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company inviting subscriptions for shares and in every certificate of shares:
- (E) The accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

Save as hereinbefore set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by this Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

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Tramways
deposit fund
not to be
repaid except
so far as
tramways
are opened.

98. Whereas pursuant to the Standing Orders of both Houses of Parliament and to the Parliamentary Deposits Act 1846 a sum of eight thousand eight hundred and fifty-two pounds has been deposited with the Paymaster-General for and on behalf of the Supreme Court in respect of the application to Parliament for this Act of which sum seven thousand one hundred and seventy-four pounds eight shillings (hereinafter referred to as "the tramways deposit fund") represents five per centum upon the amount of the estimate in respect of the tramways and the remainder (hereinafter referred to as "the street works deposit fund") that is to say one thousand six hundred and seventy-seven pounds twelve shillings represents four per centum upon the amount of the estimate for the street works Be it enacted that notwithstanding anything contained in the said Act the tramways deposit fund shall not be paid or transferred to or on the application of the person or persons or the majority of the persons named in the warrant or order issued in pursuance of the said Act or the survivors or survivor of them (which persons survivors or survivor are or is in this Act referred to as "the depositors") unless the Company shall previously to the expiration of the period limited by this Act for completion of the tramways open the same for the public conveyance of passengers and if the Company shall make default in so opening the tramways the tramways deposit fund shall be applicable and shall be applied as provided by the next following section Provided that if within such period as aforesaid the Company open any portion of the tramways for the public conveyance of passengers then on the production of a certificate of the Board of Trade specifying the length of the portion of the tramways opened as aforesaid and the portion of the tramways deposit fund which bears to the whole of the tramways deposit fund the same proportion as the length of the tramways so opened bears to the entire length of the tramways the High Court shall on the application of the depositors order the portion of the tramways deposit fund specified in the certificate to be paid or transferred to them or as they shall direct and the certificate of the Board of Trade shall be sufficient evidence of the facts therein certified and it shall not be necessary to produce any certificate of this Act having passed anything in the above-mentioned Act to the contrary notwithstanding.

Application
of tramways
deposit fund.

99. If the Company do not previously to the expiration of the period limited for the completion of the tramways complete the same and open them for the public conveyance of passengers then and in every such case the tramways deposit fund or so much

thereof as shall not have been paid to the depositors shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the tramways or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and also in compensating all road authorities for the expense incurred by them in taking up any tramway or materials connected therewith placed by the Company in or on any road vested in or maintainable by such road authorities respectively and in making good all damage caused to such roads by the construction or abandonment of such tramways and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation is payable or if a portion of the tramways deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the tramways deposit fund or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent and has been ordered to be wound up or the undertaking has been abandoned be paid or transferred to such receiver or to the liquidator or liquidators of the Company or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the depositors Provided that until the tramways deposit fund has been repaid to the depositors or has become otherwise applicable as hereinbefore mentioned any interest or dividends accruing thereon shall as and when the same become payable be paid to or on the application of the depositors.

100. On the application of the depositors at any time after the passing of this Act the High Court may and shall order that the street works deposit fund and the interest and dividends thereon shall be paid or transferred to the depositors or any other person or persons whom the depositors may appoint in that behalf.

Repayment
of street
works de-
posit fund.

AGREEMENTS.

101. The Company and the Shipley Council may enter into agreements and arrangements for the construction by or lease to the Company and for the running over working or use by the Company of the tramways or some of them authorised by the Shipley

Agreements
with urban
district
council of
Shipley.

A.D. 1903. — Improvement Act 1901 or any part thereof for such period not exceeding forty-two years and upon such terms and conditions as may be agreed on between the Company and the Shipley Council.

Agreements
with road
authority.

102.—(1) The Company may subject to the provisions of this Act enter into agreements with the road authority with respect to the construction and vesting in the road authority of all or any part of the street works situate in the district of such authority and with respect to the forming laying down maintaining renewing repairing working and using of the tramways and the rails plates sleepers posts wires apparatus and works connected therewith and for facilitating the passage of carriages and traffic over and along any roads or streets in the district of such authority upon or along which any of the tramways are intended to be laid or any part thereof.

(2) The Company on the one hand and the road authority on the other hand may enter into and carry into effect agreements with respect to the cost of the widening and improving by the road authority of any roads streets bridges courts passages and footpaths within the district of such authority and as to the contribution by the Company towards the moneys to be expended on such works and the payment of any sums payable under this section by the Company to the road authority shall be deemed a purpose of this Act to which capital is properly applicable.

Company
may contract
to lease tram-
ways or light
railways in
neighbour-
ing districts.

103. The Company may enter into and carry into effect contracts and agreements with any local authority company or person owning or working any tramways or light railways which can be worked with the Company's tramways with respect to all or any of the following matters (that is to say):—

The lease (whether for a period in excess of that provided by the Tramways Act 1870 or not) working use management and maintenance of all or any of the tramways or light railways of the contracting parties and the works connected and used therewith or any part or parts thereof respectively ;

The making of all necessary junctions ;

The supply and maintenance under any agreement for all or any of the respective tramways or light railways of the contracting parties being worked and used by any one or more of them of rolling stock plant machinery and electrical energy necessary for the purposes and during the continuance of such agreement ;

The appointment and removal of officers and servants ;

The payments to be made and the conditions to be performed in respect of the matters aforesaid ;

The interchange accommodation conveyance transmission and delivery of traffic coming from or destined for the respective undertakings of the contracting parties; A.D. 1903.

The division and apportionment of the revenue arising from such traffic and the payment of any fixed or contingent rent; and

The giving and taking of guarantees against any loss arising by reason of any such agreement and the paying out of their respective rates of any loss arising by reason of such guarantees.

104.—(1) The Company on the one hand and the local authority of any district in which any of the tramways may be situate or any company body or person authorised by any Act or Provisional Order to supply electrical energy in any such district on the other hand may enter into and carry into effect agreements for or with respect to all or any of the following purposes and all matters incidental thereto (that is to say):—

Agreements with local authorities and others as to supply of electrical energy.

(A) The supply to the Company by such local authority company body or person of electrical energy for use by the Company beyond as well as within the area of supply of such local authority company body or person for working any tramways which may for the time being be worked by the Company by electrical power under the provisions of this Act and for lighting any streets which the Company may be under any obligation to light in connection with the working of any such tramways. Provided that any supply of electrical energy by any such local authority company body or person to the Company shall except with respect to the area within which such supply may be used be subject to the provisions of the respective Acts or Orders under which such local authority company body or person may be empowered to supply electrical energy:

(B) The supply by the Company to any such local authority company body or person of electrical energy. Provided that any supply of electrical energy by the Company under this Act and any works constructed for that purpose shall be subject to all the provisions for the protection of the telegraphic lines of the Postmaster-General and of his rights in respect thereof which are contained in the Electric Lighting (Clauses) Act 1899:

(C) The payments to be made or other consideration to be given in respect of any such supply.

A.D. 1903.

(2) For the purpose of carrying out any such agreement as aforesaid the Company may subject to the provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 lay down electric lines mains or cables through any district in such line or route and in a trench of such dimensions and subject to such other terms and conditions as may be agreed between the Company and the local authority of such district or as failing agreement shall be determined by arbitration.

MISCELLANEOUS.

As to purchase of undertaking.

105. Section 43 of the Tramways Act 1870 shall in its application to the undertaking and to the Company in relation thereto be modified as follows (that is to say):—

- (1) The period of forty-two years shall except as otherwise in this Act provided be substituted for the period of twenty-one years mentioned in the said section:
- (2) The terms upon which the Company may be required to sell the portion of their undertaking within the district of any local authority shall be the terms of paying the fair market value thereof as a going concern but without any allowance for compulsory purchase:
- (3) Any expenses incurred by any rural district council under the said section 43 for the purposes of this Act shall be defrayed in manner directed by the Public Health Act 1875 either as general or special expenses within the meaning of that Act according as the Local Government Board may require.

Company may apply for and take transfers of Electric Lighting Orders.

106. The Company may apply for obtain and carry into effect Provisional Orders under the Electric Lighting Acts 1882 and 1888 and acquire or take for such period and upon such terms as may be agreed upon a transfer or lease of the powers duties and liabilities conferred or imposed on and the works constructed by and the undertaking of any local authority company or person under any Order granted under the said Electric Lighting Acts or under any Act empowering any such local authority company or person to generate and supply electrical energy for lighting or other public or private purposes and such local authority company or person may sell transfer or lease the same but any such purchase transfer or lease shall in all respects be subject to the approval of the Board of Trade.

Power to lease tramways.

107. The Company may with the consent of the Board of Trade lease to any local authority company or person and such local

authority company or person may accept a lease of the whole or any part of any tramways belonging to the Company or the right of user of the same or of levying tolls rates fares and charges authorised in respect thereof for such period and generally upon such terms and conditions as may be agreed on between the contracting parties.

A.D. 1903.

108. With respect to notices and the delivery thereof by or to the Company the following provisions shall have effect (namely):—

Form and delivery of notices.

(1) Every notice given under this Act by the Company or by the local or road authority shall be sufficiently authenticated by being signed by their secretary or clerk:

(2) Any notice to be delivered by or to the Company to or by the local or road authority or other body may be delivered by being left at the principal office of such local or road authority or other body or of the Company (as the case may be) or by being sent by post addressed to their respective clerk or secretary at their principal office or to such other office as the local or road authority or other body or the Company (as the case may be) may from time to time by notice to the other request that such notices may be sent or delivered.

109. Where under the provisions of the Tramways Act 1870 or this Act any matter in difference is referred to the arbitration of any person to be nominated by the Board of Trade the provisions of the Arbitration Act 1889 shall apply to every such arbitration.

Provision as to arbitration.

110. Where the consent or approval of any local or road authority is by this Act required before the exercise of any powers by the Company such consent or approval shall not be unreasonably withheld and if any difference arises as to whether any consent or approval is unreasonably withheld that difference shall be referred to an arbitrator to be appointed by the Board of Trade.

Consents of local or road authority.

111. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other tramway or to execute any other work or undertaking.

Deposits for future Bills not to be paid out of capital.

112. Nothing in this Act contained shall exempt the Company or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Act or

Provision as to general Tramway Acts.

A.D. 1903. from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Act.

Recovery of penalties.

113. Any penalty under this Act or under any byelaws or regulations made under this Act may be recovered in manner provided by the Summary Jurisdiction Acts.

Orders &c. of Board of Trade.

114. All orders regulations and byelaws made by the Board of Trade under the authority of this Act shall be signed by a secretary or an assistant secretary of the Board.

Costs of Act.

115. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act. A.D. 1903.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY BE TAKEN.

Numbers on deposited Plans.	Parish.	Description of Property.
2	Parish of East and West Morton	House and garden.
10	Parish of Esholt - -	Plantation.
20	Parish of Menstone - -	House.
21	Parish of Menstone - -	House.
22	Parish of Menstone - -	House and shop.
23	Parish of Menstone - -	Passage.
38	Parish of Menstone - -	House and garden.
39	Parish of Menstone - -	House and garden.
41	Parish of Menstone - -	Garden.
45	Parish of Menstone - -	Vicarage house and garden.
47	Parish of Menstone - -	House.
49	Parish of Menstone - -	House.
50	Parish of Menstone - -	House and garden.
51	Parish of Menstone - -	Garden.
53	Parish of Menstone - -	House and garden.
55	Parish of Menstone - -	Embankment.
56	Parish of Menstone - -	House garden and outbuildings.
58	Parish of Menstone - -	House garden and outbuilding and field.
6	Parish and urban district of Burley-in-Wharfedale.	Garden.
12	Parish and urban district of Burley-in-Wharfedale.	Garden.
17	Parish and urban district of Burley-in-Wharfedale.	Field and plantation.
21	Parish and urban district of Burley-in-Wharfedale.	Field cowshed and stack yard.

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1913

ANNUAL REPORT OF THE SECRETARY OF AGRICULTURE

FOR THE YEAR 1912

WASHINGTON

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